



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35074846

Date: JAN. 14, 2025

Appeal of California Service Center Decision

Form I-129, Petition for a Nonimmigrant Worker (L-1A Manager or Executive)

The Petitioner, a real estate development company, seeks to temporarily employ the Beneficiary as the managing member of its new office¹ under the L-1A nonimmigrant classification for intracompany transferees. Section 101(a)(15)(L) of the Act, 8 U.S.C. § 1101(a)(15)(L). The L-1A classification allows a corporation or other legal entity (including its affiliate or subsidiary) to transfer a qualifying foreign employee to the United States to work temporarily in a managerial or executive capacity.

The Director of the California Service Center denied the petition on multiple grounds, concluding that the Petitioner did not establish that it had a qualifying relationship with the Beneficiary's foreign employer, the Beneficiary was employed abroad with the foreign employer in a managerial or executive capacity, and the U.S. entity would be able to support the Beneficiary in a managerial capacity within one year of the petition's approval.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal as the Petitioner did not establish that the Beneficiary would be employed in a managerial capacity within one year of the approval of the petition. In these proceedings, it is the Petitioner's burden to establish eligibility for the requested benefit. Section 291 of the Act, 8 U.S.C. § 1361. Since this issue is dispositive, we decline to reach and hereby reserve the Petitioner's arguments with respect to the Director's other grounds for denial. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) ("courts and agencies are not required to make findings on issues the decision of which is unnecessary to the results they reach"); *see also Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

I. LAW

To establish eligibility for the L-1A nonimmigrant visa classification, a qualifying organization must have employed the beneficiary "in a capacity that is managerial, executive, or involves specialized

¹ The term "new office" refers to an organization which has been doing business in the United States for less than one year. 8 C.F.R. § 214.2(l)(1)(ii)(F). The regulation at 8 C.F.R. § 214.2(l)(3)(v)(C) allows a "new office" operation no more than one year within the date of approval of the petition to support an executive or managerial position.

knowledge,” for one continuous year within three years preceding the beneficiary’s application for admission into the United States. Section 101(a)(15)(L) of the Act. In addition, the beneficiary must seek to enter the United States temporarily to continue rendering their services to the same employer or a subsidiary or affiliate thereof in a managerial or executive capacity. *Id.* The petitioner must also establish that the beneficiary’s prior education, training, and employment qualify them to perform the intended services in the United States. 8 C.F.R. § 214.2(l)(3).

In the case of a new office petition, the petitioner must submit evidence to demonstrate that the new office will be able to support a managerial or executive position within one year. This evidence must establish that the petitioner secured sufficient physical premises to house its operation and disclose the proposed nature and scope of the entity, its organizational structure, its financial goals, and the size of the U.S. investment. *See generally* 8 C.F.R. § 214.2(l)(3)(v).

II. U.S. EMPLOYMENT IN A MANGERIAL CAPACITY

The sole issue we will analyze is whether the Petitioner established that the Beneficiary would be employed in a managerial capacity within one year of the petition’s approval.²

“Managerial capacity” means an assignment within an organization in which the employee primarily manages the organization, or a department, subdivision, function, or component of the organization; supervises and controls the work of other supervisory, professional, or managerial employees, or manages an essential function within the organization, or a department or subdivision of the organization; has authority over personnel actions or functions at a senior level within the organizational hierarchy or with respect to the function managed; and exercises discretion over the day-to-day operations of the activity or function for which the employee has authority. Section 101(a)(44)(A) of the Act.

To determine whether the Petitioner established that its new office would support a managerial position within one year, we review the Beneficiary’s proposed job duties, along with the Petitioner’s business and hiring plans and evidence that the business will grow sufficiently to support the Beneficiary in the intended managerial capacity. The totality of the evidence must be considered in analyzing whether the proposed managerial position is plausible, considering a petitioner’s anticipated staffing levels and stage of development within a one-year period. *See* 8 C.F.R. § 214.2(l)(3)(v)(C).

The Petitioner initially stated that the Beneficiary, as its managing member, would run the day-to-day operations of the company, including making business decisions, hiring employees, and entering into contracts. The Petitioner submitted an organizational chart indicating that the Beneficiary, as managing member, would directly oversee the business development team, the real estate management team, and support staff. The Petitioner also submitted its business plan, indicating that its start-up costs were \$40,000 and that it anticipated revenue of \$110,000 in its first year of operations.

² The Beneficiary was assigned a managerial position title and listed in the Petitioner’s business plan as its managing member. The Petitioner does not claim that the Beneficiary’s U.S. employment would be employed in an executive capacity.

In denying the petition, the Director addressed the Beneficiary's proposed U.S. employment in the new office, taking into consideration the Petitioner's business plan and the Beneficiary's list of proposed job duties. The Director determined that the proposed job duties appeared to be non-managerial and further stated that the projected staffing did not show who will relieve the Beneficiary from having to primarily perform non-managerial job duties, or that the Beneficiary's subordinates would be supervisors, professionals or other managers. The Director further determined that the Petitioner had not demonstrated that it had received a sufficient capital contribution from the foreign entity for the commencement of operations and the remuneration of the Beneficiary.

On appeal, the Petitioner restates verbatim the language set forth in the denial decision, lists the evidence it submitted both initially and in response to the Director's request for evidence (RFE), and simply states, "We believe the documentation provided establishes that the new office will support the beneficiary in a primarily managerial position within one year."

The Petitioner's assertions on appeal do not directly address the lack of evidence discussed by the Director in the denial decision, namely, the lack of probative supporting documentation to substantiate the Beneficiary's performance of managerial duties, how her subordinates will relieve her from performing non-qualifying tasks, and her personnel authority over her proposed subordinates, including her ability to hire or fire them, or recommendation such actions. In fact, the Petitioner's statements on appeal merely reiterate the statutory definition of a manager and do not specifically articulate any deficiencies in the Director's decision. We note that the regulations provide that we must summarily dismiss any appeal when a petitioner does not specifically identify an erroneous conclusion of law or statement of fact on the part of the Director. 8 C.F.R. § 103.3(a)(1)(v). Therefore, we adopt and affirm the Director's decision. *See Matter of Burbano*, 20 I&N Dec. 872, 874 (BIA 1994); *see also Giday v. INS*, 113 F.3d 230, 234 (D.C. Cir. 1997) (noting that the practice of adopting and affirming the decision below has been "universally accepted by every other circuit that has squarely confronted the issue"); *Chen v. INS*, 87 F.3d 5, 8 (1st Cir. 1996) (joining eight circuit courts in holding that appellate adjudicators may adopt and affirm the decision below as long as they give "individualized consideration" to the case).

As discussed by the Director, the Petitioner submitted little supporting documentation to corroborate the Beneficiary's performance of managerial duties in the first year of operations, her delegation of nonqualifying tasks to subordinates, or her performance of tasks consistent with personnel authority over her claimed subordinates. Although the Petitioner provided an updated description of the Beneficiary's duties in response to the Director's RFE, which indicated that her key responsibilities would include overall leadership and vision setting, strategic planning and execution, team building and development, operational oversight, stakeholder management, risk management and compliance, financial management, and innovation and adaption, the Director determined that the Beneficiary's duties as stated were overly broad and did not provide sufficient insight into her actual proposed tasks. Specifics are clearly an important indication of whether a beneficiary's duties would be primarily managerial or executive in nature, otherwise meeting the definitions would simply be a matter of reiterating the regulations. *Fedin Bros. Co., Ltd. v. Sava*, 724 F. Supp. 1103, 1108 (E.D.N.Y. 1989), *aff'd*, 905 F.2d 41 (2d. Cir. 1990).

In addition, the Petitioner provided little supporting documentation to demonstrate the employment of the Beneficiary's claimed subordinates and their duties as well as a timeline for their

hiring. *See Matter of Chawathe*, 25 I&N Dec. at 376. The Director further noted that the Petitioner did not show how the Beneficiary's proposed subordinate staff in the first year of operations, which, according to the business plan, included only one employee,³ would relieve her from performing operational and non-qualifying duties. On appeal, the Petitioner does not address or refute these determinations, and simply resubmits evidence previously submitted.

Likewise, the Petitioner does not address on appeal the Director's conclusion that the Petitioner did not sufficiently establish the size of its U.S. investment, as necessary to demonstrate that the proposed new office would support a managerial position within one year of the approval of the petition. *See* 8 C.F.R. § 214.2(l)(3)(v)(C)(2). For instance, the Petitioner did not address the lack of evidence to support the foreign entity's claimed \$65,000 investment in the new office. Although the Petitioner submitted the foreign entity's bank and financial statements, the Director concluded that such documentation did not corroborate this claimed contribution to the U.S. entity nor did the documentation support the Petitioner's contention that the foreign entity had the financial ability to enable the Petitioner to commence business operations and remunerate the Beneficiary and its other employees. As such, the Director concluded that the Petitioner did not substantiate sufficient investment at the time the petition was filed to launch the new office within the first year. On appeal, the Petitioner again does not address or refute this determination and simply resubmits evidence previously submitted.

In sum, as determined by the Director, the Petitioner has provided little supporting evidence to demonstrate that the Beneficiary would be employed in a managerial capacity within one year of the petition's approval and has not sufficiently addressed on appeal the evidentiary deficiencies discussed by the Director in the denial decision. For this reason, the appeal must be dismissed.

ORDER: The appeal is dismissed.

³ According to the business plan, only one employee, a real estate specialist/agent, would be hired during the first year of operations.